

BUSINESS ASSOCIATE AGREEMENT

(HIPAA COMPLIANCE)

THIS BUSINESS ASSOCIATE AGREEMENT (the "Agreement") is made and entered into on this ____ day of _____, 20__ (the "Effective Date"), by and between:

[CLIENT/COVERED ENTITY NAME], having a principal place of business at [Client Address] (hereinafter referred to as the "Covered Entity"),

- AND -

MediLink RCM, having a principal place of business at [Your Business Address] (hereinafter referred to as the "Business Associate").

RECITALS

WHEREAS, Covered Entity is a health care provider or other entity subject to the Health Insurance Portability and Accountability Act of 1996 ("HIPAA");

WHEREAS, Business Associate provides medical billing, revenue cycle management, and credentialing services to the Covered Entity;

WHEREAS, in connection with these services, Covered Entity discloses Protected Health Information (PHI) to Business Associate; and

NOW, THEREFORE, in consideration of the mutual covenants and premises herein contained, the parties agree as follows:

1. Definitions

- Business Associate: Shall generally have the same meaning as the term "business associate" at 45 CFR 160.103, and in reference to the party to this agreement, shall mean MediLink RCM.
- Covered Entity: Shall generally have the same meaning as the term "covered entity" at 45 CFR 160.103.
- HIPAA Rules: Shall mean the Privacy, Security, Breach Notification, and Enforcement Rules at 45 CFR Part 160 and Part 164.
- Protected Health Information (PHI): Shall have the same meaning as the term "protected health information" in 45 CFR 160.103, limited to the information created,

received, maintained, or transmitted by Business Associate from or on behalf of Covered Entity.

2. Obligations and Activities of Business Associate

MediLink RCM agrees to:

- Not Use or Disclose: Not use or disclose PHI other than as permitted or required by the Agreement or as required by law.
- Safeguards: Use appropriate administrative, physical, and technical safeguards, and comply with Subpart C of 45 CFR Part 164 with respect to electronic PHI, to prevent use or disclosure of PHI other than as provided for by the Agreement.
- Reporting: Report to Covered Entity any use or disclosure of PHI not provided for by the Agreement of which it becomes aware, including breaches of unsecured PHI as required at 45 CFR 164.410.
- Subcontractors: Ensure that any subcontractors that create, receive, maintain, or transmit PHI on behalf of the Business Associate agree to the same restrictions.

3. Permitted Uses and Disclosures by Business Associate

- Performance of Services: MediLink RCM may only use or disclose PHI as necessary to perform the medical billing, revenue cycle management, and credentialing services set forth in the underlying service agreement with the Covered Entity.
- Management and Administration: MediLink RCM may use PHI for its own proper management and administration or to carry out its legal responsibilities.

4. Obligations of Covered Entity

- Covered Entity agrees to notify MediLink RCM of any limitation(s) in its notice of privacy practices, changes in permission by an individual, or restrictions on the use or disclosure of PHI that may affect MediLink RCM's use or disclosure of PHI.

5. Term and Termination

- Term: The Term of this Agreement shall be effective as of the Effective Date.
- Termination for Cause: Business Associate authorizes termination of this Agreement by Covered Entity if Covered Entity determines Business Associate has violated a material term of the Agreement.
- Obligations upon Termination: Upon termination, MediLink RCM shall return or destroy all PHI received from Covered Entity and retain no copies.

6. Miscellaneous

- **Regulatory References:** A reference in this Agreement to a section in the HIPAA Rules means the section as in effect or as amended.
- **Interpretation:** Any ambiguity in this Agreement shall be interpreted to permit compliance with the HIPAA Rules.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the Effective Date written above.

Covered Entity (Client)

Business Associate (MediLink RCM)

By: _____

By: _____

Name: _____

Name: Mahesh Tank

Title: _____

Title: _____

Date: _____

Date: _____

NOTARY ACKNOWLEDGMENT

State of _____
County of _____

On this ____ day of _____, 20____, before me, a Notary Public in and for said State and County, personally appeared _____, known to me (or satisfactorily proven) to be the person whose name is subscribed to the within instrument, and acknowledged that they executed the same for the purposes therein contained as the authorized representative of the Covered Entity.

WITNESS my hand and official seal.

Notary Public
My Commission Expires: _____
[SEAL]

State of _____
County of _____

On this ____ day of _____, 20____, before me, a Notary Public in and for said State and County, personally appeared Mahesh Tank, known to me (or satisfactorily proven) to be the person whose name is subscribed to the within instrument, and acknowledged that he executed the same for the purposes therein contained as the authorized representative of MediLink RCM.

WITNESS my hand and official seal.

Notary Public
My Commission Expires: _____
[SEAL]